

JACKSON, J., concurring.

343 U. S.

abling the Congress from acting upon the subject.<sup>4</sup> Presidential claim to a power at once so conclusive and preclusive must be scrutinized with caution, for what is at stake is the equilibrium established by our constitutional system.

Into which of these classifications does this executive seizure of the steel industry fit? It is eliminated from the first by admission, for it is conceded that no congressional authorization exists for this seizure. That takes away also the support of the many precedents and declarations which were made in relation, and must be confined, to this category.<sup>5</sup>

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<sup>4</sup> President Roosevelt's effort to remove a Federal Trade Commissioner was found to be contrary to the policy of Congress and impinging upon an area of congressional control, and so his removal power was cut down accordingly. *Humphrey's Executor v. United States*, 295 U. S. 602. However, his exclusive power of removal in executive agencies, affirmed in *Myers v. United States*, 272 U. S. 52, continued to be asserted and maintained. *Morgan v. Tennessee Valley Authority*, 115 F. 2d 990, cert. denied, 312 U. S. 701; *In re Power to Remove Members of the Tennessee Valley Authority*, 39 Op. Atty. Gen. 145; President Roosevelt's Message to Congress of March 23, 1938, *The Public Papers and Addresses of Franklin D. Roosevelt*, 1938 (Rosenman), 151.

<sup>5</sup> The oft-cited Louisiana Purchase had nothing to do with the separation of powers as between the President and Congress, but only with state and federal power. The Louisiana Purchase was subject to rather academic criticism, not upon the ground that Mr. Jefferson acted without authority from Congress, but that neither had express authority to expand the boundaries of the United States by purchase or annexation. Mr. Jefferson himself had strongly opposed the doctrine that the States' delegation of powers to the Federal Government could be enlarged by resort to implied powers. Afterwards in a letter to John Breckenridge, dated August 12, 1803, he declared:

"The Constitution has made no provision for our holding foreign territory, still less for incorporating foreign nations into our Union. The executive in seizing the fugitive occurrence which so much ad-